

Meena Kumari vs Suresh Kumar on 21 May, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA
FAO (FC) No. 71 of 2021
Date of decision: 21.05.2024

Meena KumariAppellant.

Versus

Suresh KumarRespondent.

Coram

The Hon'ble Mr. Justice Tarlok Singh Chauhan, Judge.

The Hon'ble Mr. Justice Sushil Kukreja, Judge.

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Whether approved for reporting?

For the appellant: Mr. Surender K. Sharma,
r Advocate.

For the respondent: Mr. R.L. Chaudhary, Advocate.

Sushil Kukreja, Judge. (Oral)

The appellant, who was the petitioner before the learned Principal Judge, Family Court, Hamirpur, H.P. (hereinafter referred to as the "learned Court below") has preferred the instant appeal under Section 19 of the Family Court Act, against the order dated 27.10.2020, passed by the learned Court below, in HMA Petition No. RBT 311/15/2019, with a prayer to set-aside the same by allowing the instant petition.

2. The brief facts of the case are that the petitioner, filed a petition under Section 9 of the Hindu Marriage Act, Whether reporters of Local Papers may be allowed to see the judgment?

1955 (for short "the Act") seeking restitution of the conjugal rights. As per the petitioner, her marriage with the .

respondent was solemnized on 06.07.1991 as per Hindu rites and customs. Initially, the relationship between the parties remained cordial, however, after some time it became strained and the respondent turned the petitioner out of her matrimonial house. The petitioner tried her best to settle the matter with the respondent, but the respondent was not ready to keep the petitioner with him, despite the fact that she was ready and willing to join his company. The respondent had withdrawn from the society of the petitioner without any reasonable cause, hence she filed a petition seeking restitution of conjugal rights.

3. The respondent by filing reply, opposed the petition by taking preliminary objections qua lack of maintainability and locus standi. On merits, the contents of the petition were denied. However, the relationship between the parties was not disputed. It was averred that after the marriage, the petitioner remained faithful towards the respondent for about 2-3 years. However, thereafter she started maltreating the respondent and his family members without any reasonable cause. She also threatened the respondent to commit suicide and implicate him and his family members for the same. The petitioner refused to .

reside with the parents of the respondent and in order to maintain peace in the family, the respondent separated from his parents. However, the relationship between the parties did not improve. The petitioner developed illicit relations with one Deepak @ Deepu and told the respondent that she was not interested in solemnizing the marriage with him and was in love with another boy. The respondent made many complaints against the petitioner and compromises were effected between the parties. Even though, the petitioner had apologized and promised to improve her behaviour, however, she did not change her behaviour. The petitioner has been residing in her parental house since November, 2009 without any reason and had filed complaint against the respondent and his family members under Protection of Women from Domestic Violence Act as also petition under Section 125 of Cr.P.C. The respondent visited the parental house of the petitioner so many times and requested her to accompany him to her matrimonial house, but she did not accept his requests. Lastly, a prayer for dismissal of the petition was made.

4. On 19.05.2016, the learned Court below framed the following issues:

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"1. Whether the petitioner-wife is entitled to a decree of restitution of conjugal rights, as prayed for? OPP

2. Whether the petition is not maintainable in the present form? OPR

3. Whether the petitioner has no locus standi to file the present petition? OPR

4. Relief."

The learned Court below after deciding all the issues in negative, dismissed the petition.

5. Feeling aggrieved, the petitioner filed the instant appeal under Section 19 of the Family Court Act, against the impugned judgment with a prayer for setting-aside the same by allowing the instant petition.

6. The learned counsel for the appellant contended that the learned Court below has wrongly relied upon the evidence of the respondent by ignoring the evidence of the petitioner and had decided the case in a very casual manner, as such, the impugned order dated 27.10.2020 deserves to be quashed and set-aside. Conversely, the learned counsel for the respondent contended that the learned Court below has rightly dismissed the petition after properly appreciating the facts and law.

7. We have heard the learned Counsel for the appellant, learned counsel for the respondent and carefully .

examined the entire record.

8. The case of the petitioner is that after the marriage, her relations with the respondent remained cordial for some time, but thereafter the respondent had forcibly turned her out from the matrimonial house and since then, she has been residing at her parental house. Further case of the petitioner is that the respondent had neglected her despite the fact that she never refused to join his company being his legally wedded wife and she is still ready and willing to join his company.

9. On the other hand, case of the respondent is that the petitioner always used abusive language against him and his family members and threatened him to implicate him and his family members in false and frivolous cases and also to commit suicide. Further case of the respondent is that the petitioner used to leave her matrimonial house as per her own wish and on various occasions she was brought by him to her matrimonial house with the intervention of some respectable persons of the society and since November, 2009, she has been residing in her parental house without any rhyme and reason.

10. In order to prove her case, the petitioner .

appeared in the witness box as PW-1 and tendered in evidence her affidavit, Ext. PW-1/A. In support of her case, she also examined one Asha Devi as PW-2, who tendered in evidence her affidavit, Ext. PW-2/A.

11. To the contrary, the respondent appeared in the witness box as RW-4 and also also examined, Pradeep Kumar, Garib Dass and Jagdish Chand as RW-1 to RW-3, respectively.

12. In her cross-examination, the petitioner admitted that she had accompanied her husband to Gwalior in the year, 2009 and she went to the house of her father from Gwalior and filed a complaint against the respondent and his family members at Dehradun under Protection of Women from Domestic Violence Act. She also admitted that she had filed a petition for maintenance under Section 125 of Cr. P.C. and the respondent had been paying maintenance to her at the rate of Rs. 4,000/- per month. She also admitted that an amount of Rs. 50,000/- was paid to her by the respondent during the proceedings under Protection of Women from Domestic Violence Act. She further admitted that the respondent had filed a petition seeking divorce. She also admitted that she had made allegations against the .

respondent regarding his second marriage and that the wife of the respondent was residing with him, which would corroborate the version of the respondent that the petitioner is making false allegations against him. The petitioner further admitted that she had filed another petition under the Protection of Women from Domestic Violence Act, which also corroborate the version of the respondent that the petitioner is habitual of filing false cases against him.

13. Even though, the respondent had appeared in the witness box as RW-4 and tendered in evidence his affidavit as RW-4/A, however, he was not cross-examined by the petitioner, as she was unrepresented on the said date. It is well settled that if a party fails to cross-examine a witness on a particular aspect then it has to be presumed that such aspect stands admitted by such party. Thus in the absence of cross examination by the petitioner, it is presumed that the averments made in the affidavit by the respondent have been admitted by the petitioner. The respondent in his affidavit, Ext. PW-4/A has categorically deposed that the petitioner always used very abusive and insulting language against him and his family members and she always threatened to implicate him and his family members in false .

and frivolous cases and also that she would commit suicide.

He further deposed that the behaviour of the petitioner was not cordial and cooperative towards his parents and she refused to reside with his parents and in order to maintain peace in the family, the respondent separated from his parents, but despite that the behaviour of the petitioner remained un-cordial. The affidavit of the petitioner would go to show that the petitioner has left the house of the respondent without any reasonable cause.

14. In our opinion, since the petitioner left the house of the respondent without any reasonable cause and had made false allegations against him, therefore, she could not maintain her petition for restitution of conjugal rights by filing a petition under section 9 of the Hindu Marriage Act, 1955.

The husband, who had suffered mentally in view of such false allegations levelled by the wife cannot be compelled by the Court by passing an order of restitution of conjugal rights and to co-habit with the wife. In our view no spouse can be allowed to urge that he or she would make false allegations against other and at the same time would also force other to co-habit with him or her by filing a petition for restitution of conjugal rights under the same roof. Hence, there is no .

question of granting the relief of restitution of conjugal rights to the petitioner under section 9 of the Hindu Marriage Act, 1955.

15. Hence, taking into consideration the entirety of the circumstances, the petitioner has failed to point out any illegality or irregularity in the judgment passed by the learned Court below, as such, there is no merit in the instant appeal and the same is accordingly dismissed.

Pending application(s), if any, shall also stand(s) disposed of.

(Tarlok Singh Chauhan) Judge (Sushil Kukreja) Judge 21st May, 2024 (raman)